

SENATE JOINT RESOLUTION 79

By Bowling

A RESOLUTION to propose an amendment to Article XI, Section 12 of the Constitution of Tennessee, relative to parental rights.

BE IT RESOLVED BY THE SENATE OF THE ONE HUNDRED FOURTEENTH GENERAL ASSEMBLY OF THE STATE OF TENNESSEE, THE HOUSE OF REPRESENTATIVES CONCURRING, that a majority of all the members of each house concurring, as shown by the yeas and nays entered on their journals, that it is proposed that Article XI, Section 12 of the Constitution of Tennessee be amended by adding the following language, each as its own paragraph, immediately following the first paragraph:

A parent has the inherent and fundamental right to direct the upbringing of the parent's child, including, but not limited to, the right to direct the education of the parent's child.

The State, nor any political subdivision thereof, shall not interfere with a parent's right to make decisions for the upbringing of their own child through the adoption or enforcement of any law or rule that abridges, infringes upon, or otherwise restricts a parent's right to provide home-based education for their own child. The State, nor any political subdivision thereof, shall not impose any regulatory requirements upon any such home-based education.

The rights defined herein shall not be forfeited or waived by the acceptance of any publicly funded education scholarship, grant, stipend, or voucher provided by the State or any political subdivision thereof.

This section shall not be construed to permit the State, or any subdivision thereof, to compel attendance at any specific educational institution, nor to impose

compulsory attendance laws that restrict or limit a parent's right to educate their child in the home.

BE IT FURTHER RESOLVED, that the foregoing amendment be referred to the One Hundred Fifteenth General Assembly and that this resolution proposing such amendment be published by the Secretary of State in accordance with Article XI, Section 3 of the Constitution of Tennessee by posting such amendment on the official website of the Secretary of State and on the official website of the General Assembly.

BE IT FURTHER RESOLVED, that the Clerk of the Senate is directed to deliver a copy of this resolution to the Secretary of State, with this final resolving clause being deleted from such copies.